

THE CONSENT GAP

Governments are quietly stitching the separate records they hold on you — health, tax, justice, benefits, census — into **one combined file**. It's legal. It's spreading worldwide.

Nobody asked you.

56,000,000

census records linked to tax & benefits data in **one** UK project (96.7%)

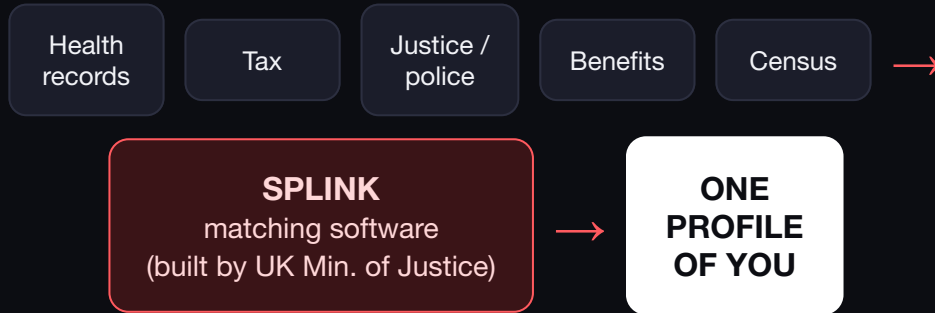
8 + 2

countries with confirmed govt use, plus the **EU** & the **UN** — only who admitted it

0 / 0 / 0

consent · notice · opt-out

HOW IT WORKS



Records that used to sit apart, with no shared ID, are matched into a single linked identity — across government departments, without your knowledge.

The shift that matters most

It started as **counting populations** (statistics). It's becoming **identifying named individuals** — in real time. That's the line, and it's already been crossed.

UNITED KINGDOM — THE DEEPEST USER (NATIONAL + LOCAL)

National: Office for National Statistics (census, tax, benefits) · NHS England (patient records) · Ministry of Justice (courts, prisons, probation + real-time court use + police arrest lookups) · Ministry of Defence · UK Health Security Agency (HIV↔health records) · Dept for Education · Homes England (30M records) · Competition & Markets Authority · Welsh Revenue Authority

Local councils: Lewisham (auto-enrolled 500+ families) · Leicestershire · Gateshead · Richmond · Wandsworth · Westmorland & Furness ("single view of the child") · London Office of Technology & Innovation (rough sleeping)

OTHER GOVERNMENTS

Australia — Medicare+Centrelink+Tax

Germany — register census

United States — Defense Health Agency, 200M+ records

Canada — Ontario; Environment Canada

Chile — Health Ministry

Gambia — 2024 census

Laos — children's health records

INTERNATIONAL ORGANISATIONS

European Union — Medicines Agency

United Nations — UNHCR (refugee data)

UNIVERSITIES (RESEARCH)

Cambridge

Harvard / Vanderbilt

Stanford

Princeton / Berkeley — 108M people

Bern (Switzerland)

Splink is free and open-source, so there is **no registry of who uses it**. This is only the use that's been publicly documented — the real footprint is larger and untraceable.

WHAT THEY DON'T TELL YOU · 3 / 4

COUNTRIES THAT DON'T USE SPLINK — BUT LINK YOUR RECORDS ANYWAY (THEIR OWN SYSTEMS)

Poland — GUS register census

Israel — Ofek + HMO health records

Scotland / Wales — SAIL, PHS

New Zealand — IDI

Ireland — Protected Identifier Key

Splink is just the **visible** instance. Linking citizens' records is near-universal — most states just use their own tools.

THIS IS BECOMING THE GLOBAL NORM

Wealthy nations' census — 2020

48 UNECE countries

Door-to-door 46%

Linked records 54%

Projected — 2030

~18%

Linked / register-based

The door-to-door census is being retired. The Nordics have linked everything for decades. OECD & the UN endorse it.

FROM COUNTING → TO IDENTIFYING YOU (FUNCTION CREEP)

WAS

Count the population

Anonymous statistics for planning

NOW

Match you in real time, in court

Find your probation record as you appear

NEXT

Pull police arrest records

Look up your PNC number for arrest info

THE GDPR PARADOX: THE PRIVACY LAW ALLOWS IT

No consent needed

"Public task" is a lawful basis on its own (Art 6). Consent was never required.

Statistics carve-out

Art 89 specifically permits linking for statistics, with light safeguards.

They needn't tell you

Art 14(5)(b): skip notifying people if it's "disproportionate effort."
The silence is legal.

So the scandal isn't a crime — it's the rule itself

The world's strongest privacy law **authorises the very thing people think it protects them from**. Nobody broke GDPR. GDPR was written to permit it. "But it's compliant" becomes the indictment, not the defence.

THE HONEST BOTTOM LINE

It's real: ~8 countries + EU + UN documented; the practice itself in ~26 of 48 wealthy nations.

It's lawful: statute, not consent — by design.

It's growing: heading toward near-universal by 2030.

You weren't asked, told, and can't opt out.

WHERE THIS SHOULD GO

medConfidential

Foxglove (litigation)

Bureau of Investigative Journalism

Guardian data team

ICO

Office for Statistics Regulation

The government is building a single picture of you from everything it holds — legal, global, and **you were never asked.**

Sources: GOV.UK Algorithmic Transparency Records · ONS · Australian Bureau of Statistics · NHS England · Splink official documentation · UNECE 2020 census round · OECD/UN guidance. Two adversarially fact-checked research passes; 50 claims verified, 0 false. Full report & archived evidence: brandonmyers.net/writing/the-quiet-joining-up

THE CONSENT GAP

HOW GOVERNMENTS LINK THEIR CITIZENS' RECORDS INTO SINGLE PROFILES — LAWFULLY, GLOBALLY, AND WITHOUT EVER ASKING

The complete brief. Public-interest research built entirely from the institutions' own published documents. Two adversarially-verified deep-research passes + direct review of Splink's official documentation + per-country sweeps (incl. Polish & Hebrew). Compiled 4 June 2026. Confidence flagged throughout; corrections noted openly; nothing asserted without a source.

PART I — THE BRIEF (one page)

One tool, one window into a global default. *Splink* — a free record-linkage program built by the UK Ministry of Justice — joins a person's separate records across government where there is no shared ID.

1. They linked 56 million people — silently. The UK ONS linked the **2021 Census to DWP benefits and HMRC tax records** — **96.7%, ~56 million people**. No consent. No notification. No opt-out. (*ONS*)

2. It's no longer just statistics — it identifies named individuals. The Ministry of Justice uses it **in real time in court**, and "to find **Police National Computer numbers** associated with individuals, in order to request relevant arrest information from the police." (*GOV.UK Algorithmic Transparency Record*)

3. It reaches the most vulnerable people alive. Documented users include **UNHCR (refugee data)**, the **Shared Child Health Record in Laos**, and the **2024 Gambian census**. (*Splink official Use Cases*)

4. It's not one country. Confirmed government use across **~8 countries + the EU and the UN** — and that's only who published it. (*Splink official Use Cases*)

5. This is the new normal. **~54% of UNECE countries already build their census on linked administrative data; ~half go fully register-based by 2030.** (*UNECE*)

6. The legal basis is the scandal. None of it is illegal. It runs on **statute, not consent**. The gap is **structural** — the default setting of the modern state.

The line that doesn't move: *Your records — health, tax, justice, benefits — are being joined into a single profile of you, lawfully, across most of the developed world. You were never asked. You cannot say no. And almost no one was told.*

PART II — THE FULL REPORT

WHAT SPLINK IS

Free, open-source probabilistic record-linkage library built by the **UK Ministry of Justice** (Fellegi-Sunter model, ADR UK-funded, ~6M downloads). It joins separate records about the same person — with no shared ID — at population scale (~100M records). Open source, so its *user list is unknowable* (no registry); what follows is only **documented** use.

Corrections made openly (v1→v2): (1) **Germany (Destatis) IS a user** — earlier discarded after checking the wrong sources. (2) **Canada IS an adopter** — earlier wrongly called a non-adopter.

CONFIRMED GOVERNMENT / PUBLIC-SECTOR ADOPTERS

(Source: *Splink official Use Cases + cited primary sources.*)

 **United Kingdom** — **pervasive, national + local**. ONS (Census, Business & Demographic Index), NHS England (Person_ID linkage), MoJ (courts/prisons/probation cross-justice ID + BOLD probation dashboards), MoD (Veterans Card), UK Health Security Agency (HIV↔health records), Dept for Education, Competition & Markets Authority, Office for Health Improvement & Disparities (health↔justice), Homes England (Land Registry↔Ordnance Survey, 30M records), Dept for Business & Trade, Welsh Revenue Authority (operational tax), **+ many local councils** — Lewisham (auto-enrolled 500+ families for Free School Meals), Leicestershire, Gateshead, Richmond, Wandsworth, Westmorland & Furness ("single view of the child"), London Office of Technology & Innovation (rough sleeping). *Operational, deep.*

 **Australia** — ABS: Person Linkage Spine (Medicare+Centrelink+Tax); National Disability Data Asset. *Operational.* 

Germany — Federal Statistical Office (Destatis): register-based census linkage. *Operational.*  **United States** — Defense

Health Agency/DoD (dedup 200M+ hospital records); Florida Cancer Registry (feasibility); Catalyst Cooperative (utility data). *Mixed.* 🇨🇦 **Canada** — Ontario Ministry of Children, Community & Social Services (**main** integration tool); Environment & Climate Change Canada. *Operational.* 🇨🇱 **Chile** — Ministry of Health (with UCL); migrant immunisation-access linkage. *Research.* 🇮🇸 **Gambia** — 2024 national census + post-enumeration survey. *Operational.* 🇱🇦 **Laos** — Shared Child Health Record; pediatric de-duplication. *Operational (health).*

International organisations: 🇪🇺 **European Medicines Agency** (duplicate adverse-event reports); 🌐 **UNHCR** (deduplicating datasets — **refugee data**).

Academia (broader still): Cambridge (CAMPOP, full-count census linkage 1851–1921); Harvard / Vanderbilt / Mass General (8.1M death records↔EHR); Princeton / Minnesota; Stanford; **Bern (Switzerland)**; UPenn / Princeton / UC Berkeley (108M individuals: property↔voter files↔donations); Lao PDR child health.

NEGATIVES & NULL RESULTS (SO IT'S HONEST, NOT CHERRY-PICKED)

- 🇵🇱 **Poland** — no Splink; GUS does its own register-based census linkage.
- 🇮🇱 **Israel** — no Splink; Ofek national HIE + HMO-linked EHRs (its own infrastructure).
- 🇸🇬 **Scotland / Wales** — PHS, NRS, SAIL Databank link via their *own* TTP/MRL systems; no Splink.
- 🇳🇿 **New Zealand** — IDI links via Fellegi-Sunter (the method), no documented Splink.
- 🇮🇪 **Ireland (CSO)** — Protected Identifier Key (PIK); no Splink.
- No evidence:** Netherlands, Norway, Sweden, Finland, Denmark, France, Spain, Italy, Eurostat, Brazil, South Africa, India.
- Statistics Canada (the NSI)** — not shown using it, *even though other Canadian government bodies do*.

THE PATTERN — CORRECTED

Not Commonwealth (Canada uses it provincially, NZ doesn't). Not Five Eyes (it spans the **EU, UN, Gambia, Laos, Switzerland, Chile**). The driver: a **free, open-source UK-government tool** spreading through the **English-language statistics community, academic collaborations (UCL→Chile), open-source distribution, and international development/health projects** (Gambia census, Laos child health, UNHCR). Language + open source + research/aid networks — not geopolitics.

THE BIGGER PICTURE — SPLINK IS ONE WINDOW INTO A GLOBAL NORM

Linking citizens' records without individual consent is now the dominant, fast-growing model of official statistics. - **UNECE 2020 census round (48 countries):** 29% **fully register-based**, 25% **combined** → ~54% **on linked administrative data**; only 46% traditional. (*UNECE*) - **2030 round:** ~half expect **fully register-based**; "most others... administrative data partly." - **Nordics** fully register-based for **decades**. - **OECD & UN** explicitly permit statistical/health linkage "subject to safeguards"; legal bases allowing it *without consent* "vary by country." **The mechanism is the point:** register-based statistics *inherently* link a person's records across government **without asking them** — the basis is **statute, not consent**. The consent gap is **structural**, expanding toward total coverage by 2030. Splink is just the most visible, open-source instance.

LEGAL STANDING & THE GDPR PARADOX

(*Informed analysis, not a legal opinion — have a data-protection specialist pressure-test before publishing.*) The instinct is "surely this breaks GDPR." **It almost certainly does not** — and that's the stronger story. - **Consent isn't required.** It's one of six lawful bases (Art 6). State linkage runs on **Art 6(1)(e) public task** and **6(1)(c) legal obligation**. - **GDPR is built to permit it:** **Art 89** carves out statistical processing; **Art 5(1)(b)** makes further statistical processing *expressly not "incompatible"*; **Art 14(5)(b)** lets controllers **skip informing people** on "disproportionate effort" grounds — *the legal home of the consent gap*; Recital 162 / Reg. (EU) 223/2009 accommodate official statistics. - **Precision:** the **EMA** is an EU body → **Reg. (EU) 2018/1725 (EUDPR)**, not GDPR itself.

The paradox: the world's strongest privacy law *legally authorises* the very thing people assume it protects them from. The gap is **legal by design — democratic, not criminal**. "But it's GDPR-compliant" becomes the indictment.

Arguable pressure points: data minimisation (5(1)(c)); transparency (13–14) vs the disproportionate- effort silence; right to object (21) curtailed for statistics; adequacy/publication of DPIAs (Art 35).

WHY IT MATTERS (+ THE FAIR COUNTER-CASE)

Concern: sensitive records fused into person-level profiles; no consent/notification/opt-out; drifting from statistics to operational identification (real-time court use; PNC lookups); now reaching **refugee data (UNHCR)** and **child health (Laos)**.

Counter-case (for credibility): lawful; accurate method; real safeguards (Five Safes, accredited researchers, secure environments, de-identification); genuine public goods (census accuracy, health research, fraud reduction); open source =

more transparent than proprietary tools. **Synthesis:** the quiet, lawful normalisation of cross-domain citizen linkage without meaningful consent — deepest in the UK, documented across ~8 countries + the EU and UN, mirrored everywhere by each state's own systems.

THE HONEST COUNT

- **Confirmed government/public-sector Splink adopters: 8 countries** (UK, Australia, Germany, US, Canada, Chile, Gambia, Laos) + **2 international bodies** (EU/EMA, UNHCR); **9 if academic-only is counted** (add Switzerland).
- **UK by far the deepest** (national + many local councils).
- **The wider no-consent linkage norm: ~26 of 48 UNECE countries already**, heading toward universal by 2030.
- **Credit scoring/credit bureaus: UNVERIFIED. Excluded.**
- **True Splink footprint larger but unnameable** (open source, no registry).

METHOD & SOURCING

Two deep-research passes (fan-out search → fetch → adversarial 2-of-3 verification → synthesis; 50 claims verified, 0 survived as false) + direct review of Splink's official Use Cases page + per-country sweeps. Primary sources: GOV.UK Algorithmic Transparency Records, ONS, ABS, NHS England, Splink official docs, IJPDS (peer-reviewed), UNECE, OECD. Negatives, nulls, and corrections reported openly.

WHERE TO TAKE IT

Lead with the one-page brief (Part I). Best homes: **medConfidential** or **Foxglove** (UK data/health rights, litigation-capable), the **Bureau of Investigative Journalism**, the **Guardian** data team; formal routes via the **ICO** and **Office for Statistics Regulation**. Approach openly, real name — it's all public-source, so there's nothing to hide and nothing to leak.

Full archived evidence (their words, screenshots, saved pages, downloadable bundle): brandonmyers.net/writing/the-quiet-joining-up